

**Tentative Rulings and Resolution Review Hearings**

**July 20, 2026**

**Department 63**

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website ([www.shasta.courts.ca.gov](http://www.shasta.courts.ca.gov)) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

**\*\*\*IMPORTANT: PLEASE NOTE THAT THE COURT NO LONGER USES COURTCALL. REMOTE APPEARANCES MAY NOW BE MADE THROUGH WEBEX.\*\*\***

Remote appearances through WebEx are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

**To appear through WebEx, please follow these instructions:**

Call 1-(844) 517-1271 at least 10 minutes before your hearing start time.

The access code is 2482 635 4223. There is no attendee ID number, so just follow verbal instructions for prompt.

Once you have gained access, wait for the court to start the calendar. Please follow these instructions once a calendar is called:

1. Please mute your telephone until your case is called.
2. Please do not place the call on hold.
3. Minimize all background noise during your call.
4. Please identify yourself, each time, prior to addressing the court.
5. Disconnect when the court has completed your case or cases.
6. The court prohibits the recording of these proceedings.

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**8:30 a.m. – Law & Motion**

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**ALLEN VS. SHRANER, ET AL.**

**CASE NUMBER: 25CV-0206889**

**Tentative Ruling on Order to Show Cause Re: Sanctions:** An Order to Show Cause Re: Sanctions issued on June 16, 2026 for failure to appear on June 8, 2026 as ordered on January 12, 2026 and for failure to timely file a Mandatory Settlement Conference Statement as required by CRC 3.1380(c) and Local Rule of Court 3.04. Both CRC 3.1380(c) and Local Rule of Court 3.04(A) require that a Mandatory Settlement Conference Statement be filed no later than five court days prior to the Mandatory Settlement Conference. Plaintiff did not file a Mandatory Settlement Conference Statement and did not appear at the June 8, 2026 Mandatory Settlement Conference. Plaintiff was present in court on January 12, 2026 when the Mandatory Settlement Conference was set. Plaintiff provided a written response that provides sufficient excuse for the failure to appear. In light of Plaintiff's circumstances, the Court will **DISCHARGE** the Order to Show Cause.

**APPELBAUM, ET AL. VS. MARQUIS CARE AT SHASTA, ET AL.**

**CASE NUMBER: 25CV-0208714**

**Tentative Ruling on Motion to Compel Discovery Responses:** Plaintiffs move for an order compelling each Defendant to respond to Plaintiffs' (1) Request for Production of Documents, Set One; (2) Request for Admissions, Set One; (3) Form Interrogatories, Set One; and (4) Special Interrogatories, Set One. Defendants oppose the motion to the extent that Defendants' objections are well founded and should not be compelled.

A party has thirty days after service to respond to a Request for Production, Request for Admissions, or Special Interrogatories. CCP §§ 2031.260(a), 2033.250(a), and 2030.260(a). Not providing a timely response to propounded discovery results in a waiver of objections. CCP §§ 2031.300(a), 2033.280(a), and 2030.290(a). If a party to whom a discovery request is directed fails to serve a timely response, the party propounding discovery may move for an order compelling a response. CCP §§ 2031.300(b) and 2030.290(c).

"Unsworn responses are tantamount to no responses at all." *Zorro Inv. Co. v. Great Pacific Securities Corp.* (1977) 69 Cal.App.3d 907, 914; *Appleton v. Superior Ct.* (1988) 206 Cal. App. 3d 632, 636.

Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390. Nevertheless, there is evidence here of significant meet and confer efforts.

Plaintiffs have presented evidence that each set of discovery was propounded to Defendants through counsel on November 11, 2025, and that Defendants sought three extensions. Defendants served unverified and incomplete responses on February 23, 2026. Extensive meet and confer communications took place and Plaintiffs' counsel ultimately set a deadline for receipt of responses by close of business May 25, 2026. Defendants acknowledge that amended verified responses have not yet been served. Failure to timely serve discovery responses results in a waiver of objections, including based on privilege or work product protection. CCP §§ 2030.290(a); 2031.300. Plaintiffs have established that the discovery is relevant and that there is good cause for further production. Plaintiff is entitled to sanctions, but none were requested and no basis has been provided for the Court to determine a reasonable amount. Therefore, no sanctions will be imposed.

The Motion is **GRANTED**. Defendants are **ORDERED** to provide verified discovery responses within ten days of the service of the Notice of Entry of Order. Objections are waived. Plaintiffs provided a proposed order that will be modified to reflect the Court's ruling.

**APPELBAUM, ET AL. VS. MARQUIS CARE AT SHASTA, ET AL.**

**CASE NUMBER: 25CV-0208714**

**Tentative Ruling on Motion to Compel Attendance at Depositions:** Plaintiffs' move for an order compelling Defendants to provide dates certain for the depositions of seven witnesses pursuant to Plaintiffs' properly served Notice of Taking Videotaped Depositions and Request for Production of Documents within three days of the date of the order granting this motion. Defendants do not oppose the motion but request thirty days to provide dates certain and that the first four witnesses who had direct involvement in the decedent's care be deposed first, with the remaining three witnesses to follow.

A party may move for an order compelling a deponent's attendance and testimony, if, after service of a deposition notice, a party to the action without having served a valid objection fails to appear for examination or proceed with it. CCP 2025.450(a). Here, Plaintiffs have provided evidence that Defendants' depositions have been properly noticed. Defendants have failed to provide available dates and meet and confer efforts have been unsuccessful. Defendant's request regarding the sequence of depositions is reasonable; however, the request for

30 days to provide dates certain is not reasonable considering the Notice of Taking Videotaped Depositions and Request for Production of Documents was served on March 26, 2026.

Plaintiffs' Motion to Compel Attendance at Depositions is **GRANTED**. Defendants are ordered to provide dates certain for all seven witnesses depositions within fifteen (15) days of service of Notice of Entry of Order. Rose Hervegault, Lauri Cruz, Jerilyn Baucum, and Cynthia Bradley are to be deposed first, with the Vice President of Operations, Regional Director of Clinical Operations, and Regional Clinical Nurse to follow. A proposed order has been lodged and will be modified to reflect the Court's ruling.

**AXIOM REPERTORY THEATRE VS. CHARITY ONE INSURANCE AGENCY, ET AL.**

**CASE NUMBER: 26CV-0209907**

**Tentative Ruling on Application to Appear Pro Hac Vice:** Owen R. Mooney, an attorney admitted to practice law in the States of Texas and Washington, seeks admission pro hac vice in order to represent Defendant Great American Assurance Company. California Rule of Court, Rule 9.40 provides the procedural requirements for a pro hac vice application and requires a verified application with the following information:

- (1) the applicant's residence and office address;
- (2) the courts to which the applicant has been admitted to practice and the dates of admission;
- (3) that the applicant is a member in good standing in those courts;
- (4) that the applicant is not currently suspended or disbarred in any court;
- (5) the title of court and cause in which the applicant has filed an application to appear as counsel pro hac vice in this state in the preceding two years, the date of each application, and whether or not it was granted; and
- (6) the name, address, and telephone number of the active member of the State Bar of California who is attorney of record.

CRC 9.40(d).

Rule 9.40(c)(1) also requires service of the application on all parties that have appeared and on the State Bar. The State Bar also requires payment of a fee. The notice requirements of CCP § 1005 apply and proof of service in accordance with CCP § 1013a is required.

The Application is verified and contains all the information required by Rule 9.40(d). The Application was timely filed and properly noticed. The fee to the State Bar has been paid. The Application is **GRANTED** and the Court will execute the proposed Order.

**BURNS VS. MCCracken**

**CASE NUMBER: 26CH-0210350**

**Tentative Ruling on Motion for Attorney's Fees:** Respondent Dustin McCracken moves for attorney's fees and costs pursuant to CCP § 527.6(s). The motion is procedurally defective.

Procedural Defects: The Notice of Motion identifies two different hearing dates. The caption identifies the hearing date as July 20, 2026. The body of the Notice identifies the hearing date as July 13, 2026. The proof of service is also defective. It identifies the person served as "Tyler Maize Lalaguna," who is in fact the individual that served the motion. Based on these defects, Petitioner objects to the motion and request it be denied due to the notice issues. Petitioner's opposition was untimely and fails to provide any evidence that he was prejudiced or actually misled by the discrepancies. Petitioner's opposition also admits that motion was actually received by the Petitioner. The Court finds that the motion is procedurally defective; however, the defects are curable. The Court will continue the matter for proper notice/service.

Lack of Evidence: The motion is supported by the Declaration of Tyler Lalaguna to justify the amount of the

requested attorney's fees and costs. The declaration is defective. The declaration was not signed under penalty of perjury and therefore the Court has no evidence to support the requested relief. The defect is easily curable.

In light of the foregoing defects, the Court continues this matter to **Monday, August 31, 2026, at 11:00 a.m. in Department 63.** The matter will be heard on the Court's normal 11:00 civil harassment restraining order calendar. Respondent shall file and timely serve an Amended Notice of Hearing for the continued hearing date. Respondent shall also file and timely serve an amended declaration signed under penalty of perjury. Petitioner can file a supplemental opposition nine court days prior to the continued hearing date. Respondent can file a supplemental reply five court days prior to the continued hearing date. **No appearance is necessary on today's calendar.**

**BUTLER, III VS. SHOEMAKER**

**CASE NUMBER: 25CV-0208353**

**Tentative Ruling on Order to Show Cause Re: Sanctions:** An Order to Show Cause Re: Sanctions issued on April 30, 2026 to Plaintiff John Butler III and counsel, Law Office of Natalie R. Ludwig for failure to timely serve Defendant as required by CRC 3.110(b). "The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint." CRC 3.110(b). The Complaint in this matter was filed on August 4, 2025. On June 11, 2026, Plaintiff filed a declaration, however, the information in that declaration shows only minimal effort toward service of Defendant and provides no information on the dates that the efforts were made. Plaintiff's counsel appeared at the hearing on the Order to Show Cause on June 15, 2026 and informed the Court that an address had been located for Defendant and that the documents were out for service with the Sheriff's Office. It is now one month later and no Proof of Service of Summons has been filed. Plaintiff has not provided any further written response explaining the delay. With no sufficient excuse for the delay, sanctions are imposed against Plaintiff and counsel in the amount of \$250. The clerk is directed to issue a separate Order of Sanctions.

**GERLINGER FOUNDRY AND MACHINE WORKS, INC. VS. CONXTECH, INC.**

**CASE NUMBER: 26CV-0209989**

**Tentative Ruling on Motion to Set Aside and Enter Judgment Pursuant to CCP §§ 473(b) and 664.6:** Plaintiff Gerlinger Foundry and Machine Works, Inc. moves to set aside the dismissal entered on May 7, 2026 under CCP § 473(b) and to enforce the settlement agreement attached to the Declaration of Eric Woodstrom as Exhibit A pursuant to CCP § 664.6. Defendant Conxtech, Inc. opposes the motion.

Request for Judicial Notice. Defendant requests the Court take judicial notice of the Request for Dismissal filed on May 7, 2026. The request is granted pursuant to Evid. Code §§ 452(d) and 453.

Merits. Prior to reaching any other part of this motion, the Court must consider whether the dismissal entered on May 7, 2026 should be set aside pursuant to CCP § 473(b).

The court may, upon any terms as may be just, relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. ... Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to the attorney's mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against the attorney's client, and which will

result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against the attorney's client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. The court shall, whenever relief is granted based on an attorney's affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties.

CCP § 473(b).

The Request for Dismissal filed on May 7, 2026 was signed by Plaintiff's counsel Aaron W. Moore, utilizing Judicial Council Form CIV-110, which has been adopted for mandatory use. Under Item 1, counsel checked the a.(2) box that reads "Without Prejudice" rather than the a.(3) box that reads "Without prejudice and with the court retaining jurisdiction (Code. Civ. Pro., § 664.6)."

Plaintiff has requested relief from the dismissal pursuant to CCP § 473(b), arguing that "Plaintiff dismissed the case based upon a mistaken belief that Defendant would comply with the parties' Settlement Agreement. Alternatively, Defendant misrepresented to Plaintiff that Defendant would comply with the Agreement, which equally constituted mistake, inadvertence, surprise, or excusable neglect within the meaning of CCP § 473(b)." *Plaintiff's Memorandum*, p. 3, lns. 16-19. Plaintiff provided no evidence to support this. The only evidence provided by Plaintiff is the Declaration of Eric Woodstrom which does not address the mistaken belief asserted in the moving papers. Without any evidence of the mistaken belief, the Court denies the CCP § 473(b) portion of the motion and cannot reach the rest as the case has been dismissed and there is no retention under CCP § 664.6.

Had Plaintiff presented evidence of the statements made in the moving papers, the motion would still be denied. Plaintiff has asserted a deliberate act based on a mistaken belief. However, based on the evidence that was presented, which includes the settlement agreement that includes a CCP § 664.6 retention in Section 5, it is puzzling why the Request for Dismissal was filed without CCP § 664.6 retention of jurisdiction. Had an attorney affidavit of fault been filed on the basis that counsel was neglectful in checking box 1.a.(2) or that checking box 1.a.(2) was a mistake, the outcome would be different. However, Plaintiff has made it clear in the moving papers and again in the reply that dismissing without CCP § 664.6 retention was a deliberate act based on a mistaken belief.

Attorney Fees. Defendant requests that the Court find Defendant to be the prevailing party on the motion and find that Defendant be awarded its reasonable attorney fees and costs in an amount to be established by noticed motion under CRC 3.1702. Section 5 of the settlement agreement contains a sentence that reads, "The prevailing party in any action or proceeding related to the enforcement of this Agreement shall be entitled to recover its attorney fees and costs." While the Court can easily find that Defendant is the prevailing party on the CCP § 473(b) motion, the Court's jurisdiction ends at the CCP § 473(b) motion. Per Defendant's own argument, the Court does not have jurisdiction to enforce the settlement agreement. The Court will make no further findings.

The motion to set aside is **DENIED**. The Court does not have jurisdiction to reach the balance of the motion. Plaintiff submitted a proposed Order that will be modified to reflect the Court's ruling.

**JPMORGAN CHASE BANK, N.A. VS. SEVERE**

**CASE NUMBER: 25CVG-01191**

**Tentative Ruling on Motion for Order that Matters in Requests for Admission of Truth of Facts be Deemed Admitted:** Plaintiff JPMorgan Chase Bank, N.A. seeks an order deeming the truth of the matters specified in Plaintiff's Requests for Admission, Set One to be admitted by Defendant Aleta N. Severe. Despite being timely notice with the motion, Defendant not file an Opposition.

When a party fails to respond to Requests for Admission, the requesting party may move for an order deeming the genuineness of documents and the truth of matters specified in the requests admitted. CCP § 2033.280(b). Failure to respond also waives any objections to the discovery propounded. CCP § 2033.280(a). Plaintiff's moving papers sufficiently demonstrate that Defendant has failed to respond to Request for Admissions, Set One within the required time frame. Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390.

Monetary sanctions are mandatory per CCP § 2033.280(c), however, Plaintiff did not seek monetary sanctions and provided no evidence regarding attorney's fees or other costs associated with bringing the motion. Sanctions should only be imposed for "reasonable" expenses. CCP § 2033.030. The Court does not have information upon which to make a finding that any amount of sanctions were for reasonable expenses and will not impose sanctions.

The motion is **GRANTED**. Defendant is deemed to have admitted as true each of the items contained in Plaintiff's Request for Admissions, Set One. Objections are waived. Plaintiff provided a proposed Order, however, it was stapled to the moving papers and cannot be detached. Plaintiff will need to submit a proposed Order for execution. The trial date of August 17, 2026 is confirmed.

**KUHN, ET AL. VS. DIGNITY HEALTH, ET AL.**

**CASE NUMBER: 23CV-0203118**

**Tentative Ruling on Applications to Appear Pro Hac Vice:** Andrew G. Jackson and Daniel I.A. Smulien seek admission pro hac vice in order to represent Defendant Medtronic, Inc. California Rule of Court, Rule 9.40 provides the procedural requirements for a pro hac vice application. One of the requirements is that notice of the hearing must be given at the time prescribed in CCP § 1005 unless the court has prescribed a shorter period. CRC 9.40(c)(1). The Applications were filed on June 26, 2026. The accompanying proof of service indicates service on the necessary parties via email on June 26, 2026. This is not timely per CCP § 1005(b). The Applications are **DENIED** without prejudice for not being filed or served in compliance with CCP § 1005(b).

**EATMON, ET AL VS. LOCKWOOD, ET AL**

**CASE NUMBER: CVCV19-0191680**

**Tentative Ruling on Motion for Earnings Withholding Order:** Judgment Creditors' Daniel Lockwood and Roseanne Lockwood move for an order to issue an earnings withholding order against the Judgment Debtor's spouse, Christine Eatmon, pursuant to CCP section 706.109. Judgment Debtor Jason Eatmon was timely served by mail with the motion and was additionally served by substitute service. Spouse Christine Eatmon was timely served by personal service. Christine Eatmon opposes the motion.

"An earnings withholding order may not be issued against the earnings of the spouse of the judgment debtor except by court order upon noticed motion." CCP § 706.109. "Except as otherwise expressly provided by statute, the community estate is liable for a debt incurred by either spouse before or during marriage, regardless of which spouse has the management and control of the property and regardless of whether one or both spouses are parties to the debt or to a judgment for the debt." Fam. Code § 910(a). "Except as otherwise provided by statute, all property, real or personal, wherever situated, acquired by a married person during the marriage while domiciled in this state is community property." Fam. Code § 760. "It is well settled that earnings of either the husband or the wife acquired during the marriage constitute community property." *State Bd. of Education v. Woo* (2000) 82 Cal.App.4<sup>th</sup> 481.

Here, the Lockwoods seek to enforce a judgment entered against Jason Eatmon. It is undisputed that Jason Eatmon and Christine Eatmon are currently married and were married at the time the judgment was entered and the debt was accrued. While Christine Eatmon's wages are deposited into an account in the solely in her name, this does

not change the character of the wages as community property. The Court acknowledges that the judgment against Christine Eatmon was discharged in bankruptcy. However this does not exempt her wages from garnishment pursuant to 11 U.S. Code § 524(b)(2).

The Motion is **GRANTED**. An earnings assignment order shall be issued against the Judgment Debtor's spouse, Christine Eatmon. Judgment Creditors have submitted a proposed order that will be executed by the Court.

**IN RE: MARTIN**

**CASE NUMBER: 26CV-0210536**

**Tentative Ruling on Petition for Change of Name:** Petitioner Tracy Lynn Martin seeks to change her name to TabithaKaterina Tracy-Lynn Martin. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated and the file closed upon the processing of the Decree Changing Name.

**IN RE: MONDRAGON**

**CASE NUMBER: 26CV-0210282**

**Tentative Ruling on Petition for Change of Name:** Petitioner Marissa Anne Mondragón-Mullens seeks to change her name to Marissa Aurora-Olivia Mondragón. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates, and close the file.

**IN RE: PANDIT**

**CASE NUMBER: 26CV-0210214**

**Tentative Ruling on Petition for Change of Name:** Petitioner Arianna Carin Pandit seeks to change her name to Arianna Carin Lemont. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated and the file closed upon the processing of the Decree Changing Name.

**PONCIANO, ET AL. VS. MARX, ET AL.**

**CASE NUMBER: CVCV20-0194371**

**Tentative Ruling on Motion for Attorney's Fees:** Plaintiffs/Cross-Defendants Dan Ponciano, Jean Ponciano, and Ashley Spurgeon request attorney's fees in the amount of \$281,845. The motion was originally noticed for hearing on June 29, 2026, however, the hearing was continued to July 20, 2026 by stipulation of the parties. The motion is opposed by Defendants/Cross-Complainants Charles H. Marx and Marlene Marx, individually and on behalf of the Marx Family 2012 Trust, and Cory Herzberg. As a preliminary matter, the motion was timely filed. CRC 3.1702(b)(1).

"Except as attorney's fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties; but parties to actions or proceedings are entitled to their costs, as hereinafter provided." CCP § 1021. Allowable costs include "Attorney's fees, when authorized by any of the following: (A) Contract. (B) Statute. (C) Law." CCP § 1033.5(a)(10).

(a) In any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs.

Where a contract provides for attorney's fees, as set forth above, that provision shall be construed

as applying to the entire contract, unless each party was represented by counsel in the negotiation and execution of the contract, and the fact of that representation is specified in the contract.

Reasonable attorney's fees shall be fixed by the court, and shall be an element of the costs of suit.

Civ. Code § 1717(a)

The contract in this matter is a Stipulation for Entry of Judgment and Judgment on Stipulation filed in Shasta County Case No. 105365 that was recorded in Shasta County on April 17, 1996. Paragraph 14 of the Judgment reads:

If any civil action or proceeding is brought by any party to this agreement (or their successors or assigns) to enforce or interpret the terms of this Stipulation and Judgment, or the provisions thereof, or the future with respect to any action between the parties concerning the rights and obligation of the parties, or the water rights and irrigation easements, then the prevailing party shall be entitled to recover reasonable attorney's fees, as well as costs incurred in connection with any such action or proceeding.

Stipulation for Entry of Judgment in Case No. 105365, ¶ 14.

Plaintiffs and Defendants are bound by the Judgment as successors. The Complaint includes a copy of the Judgment as Exhibit 3. The Cross-Complaint contains reference to the Judgment in Prayer for Relief, Item. b. Prayer for Relief, Item f. is "For cost of this action and reasonable attorneys' fees as provided for in the ROTH BARNESON v. BOYD 1996 Stipulated Judgment (see Shasta County Superior Court, Case Number 105365)." This leaves no question that Defendants/Cross-Complainants are bound by the Judgment as Defendants/Cross-Complainants themselves sought attorney's fees under ¶ 14 of the Judgment. The case as a whole concerned the rights and obligations of the parties. The entire case, including the trespass claim, falls under ¶ 14.

In order to recover attorney fees under ¶ 14, Plaintiffs must be the prevailing party.

"Prevailing party" includes the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. If any party recovers other than monetary relief and in situations other than as specified, the "prevailing party" shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not and, if allowed, may apportion costs between the parties on the same or adverse sides pursuant to rules adopted under Section 1034.

CCP § 1032(a)(4).

Here, Plaintiffs ultimately prevailed on their trespass claim, and the jury awarded a monetary judgment. Defendants/Cross-Complainants recovered no relief on the Cross-Complaint. Plaintiffs are the prevailing party and therefore entitled to reasonable attorney fees. In the Opposition, Defendants requested a reduction based on apportionment between successful and unsuccessful claims. A trial court has broad discretion when determining whether to apportion attorney's fees between successful and unsuccessful claims. *Doe v. Westmont College* (2021) 60 Cal. App. 5th 753, 767. Attorneys' fees need not be apportioned where the claims are so intertwined as to make it impracticable, if not impossible to separate the attorney's time. *Maxim Crane Works L.P. v. Tilbury Constructors* (2012) 208 Cal. App. 4th 286, 298. The claims here, both successful and unsuccessful, arose from the same set of facts and circumstances. The Court finds that all the claims were "intertwined" and that an apportionment would be inappropriate.

Plaintiffs request a total of \$281,845 which is comprised of 857.8 combined hours between Jeffery Swanson, Mark Norcross and Kat Zhao. The requested rates range from \$300 to \$350 per hour based on the attorney, work being performed, and where in the nearly seven-year timespan of the case the work was performed. The Court



finds the requested hourly rates to be reasonable for the area and the work performed. The Court is very familiar with this matter having presided over both jury trials and issued rulings on numerous Law and Motion matters. The Court has reviewed Exhibit 2 and finds that the hours expended are reasonable, including the hours billed for the future given that they will occur on this motion.

The only argument by Defendants that the Court finds compelling is regarding any reduction relates to the hours expended unsuccessfully defending motions to compel discovery filed by Defendants. The Court will reduce the award for the following entries:

- August 31, 2020 - \$1,110
- September 4, 2020 - \$1,080
- September 14, 2020 - \$300
- October 19, 2020 - \$360
- October 21, 2020 - \$60
- October 26, 2020 - \$300

This results in a total deduction of \$3,210, thereby reducing the fee award to \$278,635.

The motion is **GRANTED**. The Court finds that the 1996 Judgment allows for recovery of attorney fees on this action and that Plaintiffs are the prevailing parties. Apportionment is not appropriate intertwined nature of the claims. The hours expended and rates requested are reasonable, with the exception of the hours noted above. Attorney's fees are awarded to Plaintiffs, payable by Defendants, in the amount of \$278,635. Plaintiffs provided a proposed Order that will be modified to reflect the Court's ruling.

**IN RE: SISK**

**CASE NUMBER: 26CV-0210590**

**Tentative Ruling on Petition for Change of Name:** Petitioner Marisa Angeline Sisk seeks to change her name to Nina Angeline Sisk. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated and the file closed upon the processing of the Decree Changing Name.

**SUBWAY REAL ESTATE, LLC VS. ROSARIO SABET, ET AL.**

**CASE NUMBER: 23CV-0202926**

**Tentative Ruling on Order to Show Cause Re: Sanctions:** An Order to Show Cause Re: Sanctions issued on June 3, 2026 to all parties and counsel for failure to timely file a Mandatory Settlement Conference Statement as required by CRC 3.1380(c) and Local Rule of Court 3.04. Both CRC 3.1380(c) and Local Rule of Court 3.04(A) require that a Mandatory Settlement Conference Statement be filed no later than five court days prior to the Mandatory Settlement Conference. The Mandatory Settlement Conference in this matter was to take place on June 8, 2026. No party filed a Mandatory Settlement Conference Statement. Counsel for David and Lori Howland filed a declaration that provides sufficient excuse. The Order to Show Cause is **DISCHARGED** as to David Howland, Lori Howland, and their counsel only. No other party responded to the Order to Show Cause.

Without sufficient excuse for failing to timely file a Mandatory Settlement Conference Statement, monetary sanctions are imposed in the amounts of \$250 against Plaintiff Subway Real Estate, LLC and counsel Bowman and Brooke, LLP, and \$250 against Defendant Marikit Del Rosario Sabet and counsel NewPoint Law Group, LLP. The clerk is directed to issue separate Orders of Sanctions.

**IN RE: WRIGHT**

**CASE NUMBER: 26CV-0210187**

**Tentative Ruling on Petition for Change of Name:** Petitioner Cynthia Marie Wright seeks to change her name to Katheryne Elizabeth Nickell. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated and the file closed upon the processing of the Decree Changing Name.

**WYNHOFF VS. CITY OF REDDING**

**CASE NUMBER: 24CV-0204924**

**Tentative Ruling on *Pitchess* Motions:** Defendant City of Redding filed *Pitchess* motions seeking records from Siskiyou County, Sonoma County, and Shasta County. The motion for Siskiyou County was granted on July 9, 2026 based on the receipt of a Non-Opposition. The motions for Sonoma County and Shasta County were granted at the hearings on July 6, 2026. In reviewing the minutes from the hearings on July 6, 2026, the Court notes that there is a clerical error. Today is scheduled to *set* the in-camera reviews, not *conduct* them. For efficiency, the Court intends to set all three in-camera reviews for the same time. The Court can generally set aside time for such matters on Monday afternoons or Fridays and intends to set the in-camera reviews in the next three weeks. The parties are encouraged to check with their custodians regarding availability and be prepared to select a date at today's hearing. In person appearances are not required. All parties may appear via WebEx using the instructions above.

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**9:00 a.m. – Review Hearings**

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**ALLEN VS. SHRANER, ET AL.**

**CASE NUMBER: 25CV-0206889**

This matter is on calendar for a trial setting conference. The Court designates this as a Plan III case and intends to set the matter for trial no later than January 20, 2027. Defendants have posted jury fees. Plaintiff has a fee waiver on file, however the Order Granting Fee Waiver filed January 24, 2025 does not include jury fees and expenses (Item 4.a.(2)). Plaintiff is granted ten days leave to post jury fees or obtain a fee waiver. A failure to post jury fees or obtain a fee waiver in that time will be deemed a waiver of the right to a jury. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial. **An appearance is necessary on today's calendar.**

**BARNETT, ET AL. VS. NORTH VALLEY DEVELOPMENTAL SERVICES, INC.**

**CASE NUMBER: 24CV-0204885**

This matter is on calendar for review regarding status of mediation. The parties were directed to file a status statement at least five days prior to today's hearing. A status statement was not filed. **An appearance is necessary on today's calendar.**

**BUTLER, III VS. SHOEMAKER**

**CASE NUMBER: 25CV-0208353**

This matter is on calendar for review regarding status of service and responsive pleading. No Proof of Service of Summons has been filed and Plaintiff did not file a status statement. **An appearance is necessary on today's calendar.**

**CITIBANK, N.A. VS. GARCIA**

**CASE NUMBER: 25CVG-00161**

This matter is on calendar for review regarding status of dismissal. The Court notes that Plaintiff has never filed a Notice of Settlement and instead submitted a CCP § 664.6 dismissal that was rejected by the clerk on March 18, 2026 for procedural defects. The Court informed Plaintiff of this on March 23, 2026. On April 24, 2026,

Plaintiff filed a case management statement requesting a continuance of 90 days to finalize a settlement agreement. The Court continued the April 27, 2026 review hearing to today. In the interim, Plaintiffs submitted the same CCP § 664.6 dismissal as before which was rejected by the clerk for procedural defects on May 13, 2026. It appears that Plaintiff has taken no steps since then to finalize this case. Plaintiff must follow the California Rules of Court when submitting documents. Please see CRC 2.303 regarding lack of a wet signature and filing by fax. **An appearance is necessary on today's calendar to explain the delay and provide the Court with a timeline for when the issues noted previously will be corrected.**

**DUNNE, ET AL. VS. POLARIS INDUSTRIES, INC., ET AL.**

**CASE NUMBER: CVPO21-0198252**

This matter is on calendar for confirmation of deposit and purchase of annuities. Acknowledgements of Receipt of Order and Funds for Deposit in Blocked Account were filed for each minor on July 7, 2026. On May 1, 2026, Plaintiffs filed Declarations Regarding Change in Annuity Company, but these only provide the proposals, not proof that the annuities have been purchased. The matter is continued to **Monday, August 31, 2026 at 9:00 a.m. in Department 63** for confirmation of annuity purchase. If valid proof of annuity purchase is received at least five court days prior to the next review hearing, the Request for Dismissal received on July 8, 2026 may be processed. Otherwise, Plaintiffs are ordered to file a status statement at least five court days prior to the hearing. **No appearance is necessary on today's calendar.**

**HAWKINS, ET AL. VS. ALCALA, ET AL.**

**CASE NUMBER: 25CV-0208459**

This matter is on calendar for a trial setting conference. The Court designates this matter as a Plan III case and intends on setting the matter for trial no later than February 2, 2027. Neither side has posted jury fees. The parties are granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial. **An appearance is necessary on today's calendar.**

**MALINOVSKY VS. SHASTA UNION HIGH SCHOOL DISTRICT, ET AL.**

**CASE NUMBER: 26CV-0210144**

This matter is on calendar for review regarding status of the Writ. No status statements were filed. The Court notes that a First Amended Petition for Preemptory Writ of Mandate was filed on April 10, 2026. Proofs of Service were filed as to each Respondent on April 14, 2026. On June 12, 2026, Respondents Shasta Union High School District, Jason Rubin, Heath Bunton, and Karen Fifield filed a Motion to Strike and a Demurrer, both which are noticed for hearing on August 3, 2026. The matter is continued to **Monday, August 3, 2026 at 9:00 a.m. in Department 63** for status of the Writ. **No appearance is necessary on today's calendar.**

**O2 STAFFING, INC. VS. AHRENS, ET AL.**

**CASE NUMBER: 24CV-0205621**

This matter is on calendar for review regarding status of bankruptcy. The parties were directed to file a status statement at least five court days prior to today's hearing. A status statement was not filed. **An appearance is necessary on today's calendar.**

**OWENS VS. CALIFORNIA DEPARTMENT OF REHABILITATION**

**CASE NUMBER: 22CV-0200870**

This matter is on calendar for status of dismissal. Defendant filed a status statement informing the Court that additional time is needed to finalize the settlement. The matter is continued to **Monday, September 28, 2026 at 9:00 a.m. in Department 63** for status of dismissal. The hearing will be vacated if the matter is dismissed. Otherwise, the parties are ordered to file a status statement at least five court days prior to the hearing. **No appearance is necessary on today's calendar.**

**PLUMAS BANK VS. MENDOZA, ET AL.**

**CASE NUMBER: 25CVG-01147**

This matter is on calendar for review regarding status of judgment. Plaintiff filed a status statement informing the Court that a judgment was being concurrently filed. The CIV-100 and JUD-100 were rejected by the clerk on July 15, 2026. The Court notes that the Court already ordered that a judgment issue in the amount of \$9,329.61 on January 5, 2026 when ruling on Plaintiff's Motion for Judgment on the Pleadings. Plaintiff need not submit a CIV-100 or JUD-100. A proposed Judgment in the amount of \$9,329.61 can be submitted on pleading paper. If Plaintiff seeks costs, a Memorandum of Costs has to be filed. Any request for attorney's fees will require a noticed motion. The matter is continued to **Monday, August 24, 2026 at 9:00 a.m. in Department 63** for status of judgment. Plaintiff is ordered submit a proposed Judgment. **No appearance is necessary on today's calendar.**

**SUBWAY REAL ESTATE, LLC VS. ROSARIO SABET, ET AL.**

**CASE NUMBER: 23CV-0202926**

This matter is on calendar for review regarding status of pleadings and for a trial setting conference. The Complaint is as issue. Plaintiff has not yet filed an Answer to the Cross-Complaint filed on June 4, 2026. At the ex parte hearing on June 30, 2026, counsel for Plaintiff/Cross-Defendant stated that formal service of the Cross-Complaint had not occurred, but counsel would get an Answer on file. **An appearance is necessary on today's calendar.**

**SYNCHRONY BANK VS. SILACCI**

**CASE NUMBER: 24CVG-01485**

This matter is on calendar for review regarding status of dismissal. This is the fifth time the matter has been on calendar since the court trial on December 1, 2025 when Plaintiff requested a continuance and asserted that the case settled by Defendant stopped making payments. Proof of Service of Summons was filed on November 4, 2024. Plaintiff was required to obtain a default judgment within 360 days of the Complaint being filed on October 1, 2024. The Court will issue an Order to Show Cause Re: Monetary Sanctions in the amount of \$250 to Plaintiff and counsel for failure to timely obtain a default judgment as required by CRC 3.740(f). Hearing on the Order to Show Cause will be on **Monday, September 21, 2026 at 8:30 a.m. in Department 63**. The clerk is directed to prepare the Order to Show Cause. **No appearance is necessary on today's calendar.**

**WAGNER VS. LLOYD**

**CASE NUMBER: CVCV21-0198602**

This matter is on calendar for review for status of appointment of referee. On April 8, 2026, the Court issued a Statement of Decision providing that the Court would appoint a referee of the parties' choosing to facilitate the sale of the real property. Plaintiff's counsel appeared on June 1, 2026 and stated that she had not received the Statement of Decision. The Statement of Decision was mailed again on June 8, 2026. No request to appoint a referee has been submitted. **An appearance by all parties is necessary on today's calendar.**

**WARD, ET AL. VS. LEVINDOFSKE, ET AL.**

**CASE NUMBER: 25CV-0207586**

This matter is on calendar for review regarding status of responsive pleading and trial setting. A First Amended Complaint was filed on May 13, 2026. Defendants file Motion to Strike the First Amended Complaint on July 15, 2026 that is noticed for August 17, 2026. The matter is continued to **Monday, August 17, 2026 at 9:00 a.m. in Department 63** for status of the case. **No appearance is necessary on today's calendar.**